

1963 CHAPTER 7*National Insurance Act 1963***ARRANGEMENT OF SECTIONS****Section.**

1. Higher contributions and benefits under National Insurance Act 1946.
2. Amendments of National Insurance Act 1946.
3. Graduated contributions.
4. Higher contributions and benefits under Industrial Injuries Act.
5. Allowances in respect of incapacities arising from pre-1948 employment.
6. Transitory provisions as respects assistance grants.
7. Financial provisions.
8. Citation, commencement, repeals, extent, etc.

SCHEDULES:

Schedule 1—Provisions to be substituted in Schedule 1 of National Insurance Act 1946.

Schedule 2—Provisions to be substituted in Schedule 2 Part I of National Insurance Act 1946.

Schedule 3—Amendments of Industrial Injuries Act.

Schedule 4—Commencement, transitional provisions and construction.

Schedule 5—Repeals.

An Act to increase ungraduated contributions and benefits under the National Insurance Acts 1946 to 1961, and contributions and benefits under the National Insurance (Industrial Injuries) Acts 1946 to 1961, to modify, in connection with the increase of any such benefits, the method of computing national assistance grants for any period before all the increases have taken effect, to modify the widowed mother's allowance under the National Insurance Act 1946, to amend section 24 (1) of the National Insurance Act 1946 as respects conditions for payment of benefit under that section, to alter graduated contributions and benefits under the National Insurance Act 1959 by enlarging the amount of pay taken into account in fixing contributions, to amend that Act of 1959 as respects non-participating employments and to improve the allowances payable out of the Industrial Injuries Fund in respect of incapacities arising from pre-1948 employment; and for purposes connected with the matters aforesaid.

[28th February 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In Schedule 1 (Rates of contributions) of the National Insurance Act 1946 for Parts I to IV as set out in Schedule 2 of the National Insurance Act 1960 there shall be substituted the provisions set out in Schedule 1 of this Act. Higher contributions and benefits under National Insurance Act 1946.

(2) In section 1 (2) (b) of the National Insurance Act 1959 (under which ungraduated contributions to the National Insurance Fund are to go up in each of the years 1965, 1970, 1975 and 1980) for the words "an addition of ninepence" in subparagraph (ii) (which is the addition to be made in each of those years to the employee's and employer's contributions in non-participating employments and to the contributions of self-employed and non-employed persons other than boys and girls) there shall be substituted the words "an addition of tenpence", and accordingly for "ninepence" in the proviso to the said section 1 (2) (which empowers the Minister to reduce the additions to be so made) there shall be substituted "tenpence".

(3) In Schedule 2 of the National Insurance Act 1946 for Part I (Rates of periodical benefits and of increases for dependants) as set out in Schedule 3 of the National Insurance Act 1960 there shall be substituted the provisions set out in Schedule 2 of this Act.

(4) The amount of maternity grant shall be increased from fourteen pounds to sixteen pounds, and Schedule 2 Part II of the said Act of 1946, as set out in Schedule 4 Part II of the National Insurance (No. 2) Act 1957 and amended by section 2 (3) of the National Insurance Act 1960, shall have effect accordingly.

(5) The provisions of this section increasing retirement pensions shall not be taken as affecting the provisions of section 74 of the said Act of 1946 relating to non-contributory pensions.

2.—(1) A widowed mother's allowance shall not be reduced under section 17 (3) of the National Insurance Act 1946 (which applies an earnings rule to the allowance)— Amendments of National Insurance Act 1946.

(a) to less than 26 shillings, or

(b) where the allowance is payable by virtue of the widow's having a family (that is, where payable under subsection (1) (b) (i) of the said section 17) to less than—

(i) 26 shillings, plus

(ii) the difference between the two weekly rates of widowed mother's allowance as set out in Schedule 2 Part I column 2 of the said Act of 1946, plus

(iii) any increase in the allowance in respect of any child of the family other than the elder or eldest.

(2) In the said subsection (1) (b) (i) (which, as amended by Schedule 4 paragraph 2 of the National Insurance Act 1960, makes the widowed mother's allowance conditional in certain cases on the widow contributing to the cost of providing for a child at not less than 25 shillings a week) for the words "at the rate of 25 shillings a week or more" there shall be substituted the words "at a weekly rate not less than the difference between the two weekly rates of widowed mother's allowance as set out in the second column of Part I of the Second Schedule to this Act".

(3) So much of the said subsection (1) (b) (i) and of section 19 (3) proviso of the Industrial Injuries Act as authorises the making of regulations reducing the amount of an allowance or payments under either of those sections shall cease to have effect.

(4) In section 24 (1) of the said Act of 1946 (under which the increase of benefit in respect of a wife is not payable if her weekly earnings exceed 40 shillings) for the reference to 40 shillings there shall be substituted a reference to the amount of the increase as set out in Schedule 2 Part I column 5 of that Act and, accordingly, for the words "40 shillings" there shall be substituted the words "that amount".

Graduated
contributions.

3.—(1) The upper limit on the amount of weekly pay taken into account under section 1 (1) (b) (iii) of the National Insurance Act 1959 (which fixes the graduated contributions payable by employees and employers) shall be increased from £15 to £18 and, accordingly, for the words "six pounds" in that subparagraph there shall be substituted the words "nine pounds".

(2) As respects service after such date as may be appointed by order of the Minister, in section 8 (1) (d) of the National Insurance Act 1959 (which defines equivalent pension benefits for the purpose of distinguishing non-participating employments from other employments) for the words from "the pension or the said part of it is of an amount" to the end of the paragraph there shall be substituted the words—

"the pension or the said part of it is of an amount not less, when expressed as an annual rate, than, in the case of a man, 69 shillings and 7 pence a year, and, in the case of a woman, 58 shillings a year, for each year of the period of service",

and regulations may, in order to facilitate the computations needed to ascertain equivalent pension benefits for the purpose of section 7 (3) of that Act (payments in lieu of contributions) or of any other provision of that Act, convert the formula in the said section 8 (1) (d) (as respects service before or after the

date appointed by the Minister under this subsection, or in respect of both kinds of service) into a formula expressed in terms—

- (a) of a minimum annual rate of pension for a period of service expressed in terms of weeks, or
- (b) of a minimum rate of pension, as a rate for a week or month or other period shorter than a year, for a period of service expressed in terms of weeks,

adjusting the figures so as to admit of tabulation and so as to avoid fractional amounts or otherwise facilitate computation, and making special provision for a period of service which does not amount to a whole number of weeks and for a week of service which includes the date appointed under this subsection.

(3) In applying section 7 (2) (a) of the National Insurance Act 1959 (which distinguishes non-participating employments from other employments by reference to equivalent pension benefits) to any employment after the date appointed under the last foregoing subsection no account shall be taken of service before that date.

(4) As respects service after such date as may be appointed by order of the Minister, in section 7 (3) (a) (payments in lieu of contributions), and in section 7 (5) (dual employments), of the National Insurance Act 1959 for the words "fifteen pounds" there shall be substituted the words "eighteen pounds".

Different dates may be appointed under this subsection for the said section 7 (3) and the said section 7 (5), but the date appointed for the said section 7 (3) shall not be earlier than the date appointed under subsection (2) of this section.

(5) If a payment is made as required by the said section 7 (3) in respect of a period—

- (a) falling partly before and partly after the date appointed under the last foregoing subsection for the said section 7 (3), or
- (b) falling partly before and partly after the date of any change in the percentage mentioned in section 1 (1) (b) (iii) of the National Insurance Act 1959 taking effect under section 1 (2) (a) of that Act, or
- (c) falling partly before and partly after the date of any change in the said percentage or the sums of money mentioned in the said section 1 (1) (b) (iii), or of any change in the rates of contributions set out in Schedule 1 of the National Insurance Act 1946, effected by or in pursuance of any Act passed after this Act,

and the amount of the payment is less than the full amount required, the Minister may allocate the payment as between the two parts of the period as he may think fit, and the said section 7 (3) shall apply to the payment as if the two parts of the period were separate periods.

(6) Any statutory instrument containing an order under this section shall be laid before Parliament after being made.

Higher
contributions
and benefits
under
Industrial
Injuries Act.

4.—(1) In Schedule 2 Part I (Rates of contributions) of the National Insurance (Industrial Injuries) Act 1946 (in this Act referred to as the “Industrial Injuries Act”) for the table set out in Schedule 1 Part I of the National Insurance Act 1960 there shall be substituted the table set out in Schedule 3 Part I of this Act.

(2) In the provisions of the Industrial Injuries Act specified in Parts II and III of Schedule 3 of this Act (of which those in Part II relate to the rates and amounts of benefit described in column 2 thereof and those in Part III are connected with certain of the benefits so described) for the words set out in column 3 of the said Parts II and III there shall be substituted the corresponding words set out in column 4 thereof.

Allowances
in respect of
incapacities
arising from
pre-1948
employment.

5.—(1) The Workmen’s Compensation and Benefit (Supplementation) Act 1956 (which provides for the payment of allowances out of the Industrial Injuries Fund in cases of injury or disease arising out of pre-1948 employment and resulting in total disablement or incapacity for work), as amended by section 1 (1) of the Family Allowances and National Insurance Act 1961, shall have effect with the substitution in section 2 of a rate of allowance of 65 shillings a week for the rate of 32 shillings and 6 pence a week.

(2) The Family Allowances and National Insurance Act 1961 (which among other things provided for the payment of improved allowances in respect of incapacities arising from pre-1948 employment) shall, in relation to the payment of allowances for periods of incapacity for work falling after the coming into force of this subsection, be amended—

(a) by the substitution for section 1 (2) (a) (which altered to 66 shillings and to 50 shillings the monetary references in section 2 of the Workmen’s Compensation (Supplementation) Act 1951 which operate to limit the maximum weekly rate of allowance which under any scheme under the said Act of 1951 may be paid in cases of injury or disease arising out of pre-1924 employment) of the following paragraph—

“(a) shall be amended by the substitution in section 2 (2) and (8) of references to 86 shillings and to 70 shillings for the references to 66 shillings and 50 shillings (which operate to limit the maximum weekly rate of allowance under any scheme); and”,

and

(b) by the substitution in section 1 (2) (b) and in paragraph 1 (d) of Schedule 1 of references to 30 shillings for the

references to 10 shillings (which operate to limit the maximum weekly rate of allowance which under any scheme under the said Act of 1951 may be paid in cases of injury or disease arising out of post-1923 employment).

(3) The Industrial Diseases (Benefit) Acts 1951 and 1954 (which authorise the making of schemes for the payment of allowances out of the Industrial Injuries Fund in cases of disease arising out of pre-1948 employment but not entitling the sufferer to workmen's compensation) shall be amended by the substitution in section 3 (2) of the Pneumoconiosis and Byssinosis Benefit Act 1951 of the words "or, if the disablement is not total, 42 shillings and 6 pence" for the words "or, if the disablement is not total, 27 shillings and 6 pence" (which were substituted by section 1 (3) of the said Act of 1961); and any scheme under those Acts of 1951 and 1954 which is in force at the coming into force of this subsection shall have effect accordingly.

(4) If an allowance under the Workmen's Compensation and Benefit (Supplementation) Act 1956 is awarded to a person who has previously been awarded an allowance under the Workmen's Compensation (Supplementation) Act 1951 or the Industrial Diseases (Benefit) Acts 1951 and 1954, and the conditions for entitlement to the two allowances are inconsistent, the decision awarding the allowance under the Act of 1956 shall direct that any sums paid under the other award to which the beneficiary cannot be entitled in addition to the allowance under the Act of 1956 shall be treated as paid on account of the allowance under the Act of 1956:

Provided that the award shall be subject to the condition that if there is a requirement to repay any sums paid on account of the allowance under the said Act of 1951 or the said Acts of 1951 and 1954 the direction shall not have effect in relation to those sums.

6.—(1) This section shall apply if the increases of benefit under this Act do not all take effect on the same date, and, after the passing of this Act, regulations are made under section 5 of the National Assistance Act 1948—

Transitory provisions as respects assistance grants.

(a) which alter the scales used in computing the requirements of applicants for assistance grants by making increases in those scales which are to the advantage of the applicants, and

(b) which are expressed to come into force on a date which is not later than the date by which all the increases of benefit under this Act have taken effect.

(2) If, in computing resources in connection with any assistance grant to be made for any period ending before the date on which the said regulations are expressed to come into force,

account is taken of a payment of benefit part of which represents an increase attributable to the provisions of this Act, the computations required in determining the amount of the assistance grant shall be made as if the said regulations were in force, except that the amount of the assistance grant shall not thereby be increased beyond what it would have been if this Act had not been passed.

(3) In this section—

- (a) “assistance grant” has the meaning given to that expression by section 8 (1) of the National Assistance Act 1948,
- (b) “the date by which all the increases of benefit under this Act have taken effect” shall be that date as stated in an order under Schedule 4 paragraph 1 of this Act.

Financial
provisions.

7.—(1) There shall be defrayed out of moneys provided by Parliament—

- (a) any increase attributable to this Act in the sums payable out of moneys so provided under section 2 (b) of the Industrial Injuries Act or section 1 (3) of the National Insurance Act 1959 (Exchequer supplements) or section 12 (4) of the said Act of 1959 (Statutory superannuation schemes), and
- (b) subject to the provision made by section 60 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund or by section 38 of the National Insurance Act 1946 for reimbursement out of the National Insurance Fund, any increase attributable to this Act in the expenses of the Minister or of any other Government department which are payable out of moneys so provided by virtue of either of those sections as amended or applied by any subsequent enactment,

and for the purposes of this subsection the expenses of the Minister shall include sums paid by the Minister under section 19 (2) of the Post Office Act 1961 which, in accordance with section 13 of the Family Allowances and National Insurance Act 1961, are treated for the purposes of the Industrial Injuries Act or the National Insurance Act 1946 as expenses of the Minister in carrying those Acts into effect.

(2) In section 19 (2) of the Post Office Act 1961 the expressions—

“the Family Allowances Acts 1945 to 1959,”

“the National Insurance Acts 1946 to 1959” and

“the National Insurance (Industrial Injuries) Acts 1946 to 1959”

shall respectively include all the enactments which, under the Family Allowances and National Insurance Act 1961 or this

Act, may be cited as the Family Allowances Acts 1945 to 1961, the National Insurance Acts 1946 to 1963 and the National Insurance (Industrial Injuries) Acts 1946 to 1963, and, except so far as otherwise provided, whether expressly or by implication, any more enactments which, under any Act passed after this Act, are included in any citation which uses the phrase "the Family Allowances Acts", "the National Insurance Acts" or "the National Insurance (Industrial Injuries) Acts", as the case may be.

(3) There shall be paid into the Exchequer any sums falling to be so paid in consequence of this Act.

8.—(1) This Act may be cited as the National Insurance Act 1963. Citation,
commence-
ment, repeals,
extent, etc.

(2) This Act, so far as it relates to the subject matter of those Acts respectively, may be cited—

(a) together with the National Insurance (Industrial Injuries) Acts 1946 to 1961 as the National Insurance (Industrial Injuries) Acts 1946 to 1963, and

(b) together with the National Insurance Acts 1946 to 1961 as the National Insurance Acts 1946 to 1963.

(3) Schedule 4 of this Act shall have effect with respect to the commencement of this Act and the transitional and other matters there dealt with.

(4) The enactments mentioned in Schedule 5 of this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(5) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provision relating to Northern Ireland of the Acts referred to in subsection (2) of this section, this Act shall not extend to Northern Ireland.

(6) Any reference in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or applied by or under any other enactment including this Act.

SCHEDULES

Section 1

SCHEDULE 1

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 1
OF NATIONAL INSURANCE ACT 1946

CONTRIBUTION RATES

PART I

Employed Persons

Description of employed person	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment	If by virtue of a non-participating employment
	s. d.	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 80s.	8 3½	10 8½
Earning remuneration at a weekly rate of 80s. or less	4 8½	5 11½
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 80s.	7 2½	8 8½
Earning remuneration at a weekly rate of 80s. or less	3 11½	4 8½
Boys under the age of 18	5 11½	
Girls under the age of 18	4 8½	

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of 80 shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds nor is deemed in accordance with regulations made under section 78(5) of this Act to exceed 80 shillings a week, and to be earning remuneration at a weekly rate exceeding 80 shillings in any other case.

PART II
Employers

SCH. 1

Description of employed person	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment	If by virtue of a non-participating employment
	s. d.	s. d.
Men over the age of 18—		
Earning remuneration at a weekly rate exceeding 80s. or not being liable to pay a contribution as an employed person ...	8 3½	10 8½
Earning remuneration at a weekly rate of 80s. or less and being liable to pay a contribution as an employed person ...	11 10½	15 5½
Women over the age of 18—		
Earning remuneration at a weekly rate exceeding 80s. or not being liable to pay a contribution as an employed person ...	7 2½	8 8½
Earning remuneration at a weekly rate of 80s. or less and being liable to pay a contribution as an employed person ...	10 5½	12 8½
Boys under the age of 18	5 11½	
Girls under the age of 18	4 8½	

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)	13 4
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)	11 0
Boys under the age of 18	7 7
Girls under the age of 18	6 3

SCH. 1

PART IV

Non-Employed Persons

Description of non-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 65	10 2
Women between the ages of 18 and 60	7 10
Boys under the age of 18	5 10
Girls under the age of 18	4 6

Section 1.

SCHEDULE 2

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 2 PART I
OF NATIONAL INSURANCE ACT 1946

Rates of periodical benefits and of increases for dependants

Description of Benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
1. Unemployment benefit and sickness benefit—				
(a) in the case of a person over the age of 18, not being a married woman	67 6	20 0	12 0	41 6
(b) in the case of a person under the age of 18, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant ...	67 6	20 0	12 0	41 6
(ii) during any other period	38 6	—	—	—
(c) in the case of a married woman over the age of 18—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with her husband nor is he contributing to her maintenance at not less than the relevant rate	67 6	20 0	12 0	41 6

SCH. 2

Description of Benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
1. Unemployment benefit and Sickness benefit— <i>cont.</i>				
(ii) during any other period	46 0	20 0	12 0	41 6
(d) in the case of a married woman under the age of 18—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with her husband nor is he contributing to her maintenance at not less than the relevant rate	67 6	20 0	12 0	41 6
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	46 0	20 0	12 0	41 6
(iii) during any other period	38 6	—	—	—
2. Maternity allowance	67 6	20 0	12 0	41 6
3. Widow's allowance				
4. Widowed mother's allowance—	95 0	30 0	22 0	—
(a) where payable under section 17 (1) (b) (i) of this Act	97 6	—	22 0	—
(b) in any other case	67 6	—	—	—
5. Widow's pension	67 6	—	—	—
6. Guardian's allowance	37 6	—	—	—
7. Retirement pension—				
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive	41 6	20 0	12 0	—
(b) in any other case	67 6	20 0	12 0	41 6
8. Child's special allowance	30 0	—	22 0	—

1. In paragraphs 1 (c) (i) and 1 (d) (i) above "the relevant rate" means a weekly rate equal to the difference under this Schedule between the rates of benefit applying if the husband is, and if he is not, contributing to the wife's maintenance at not less than the relevant rate.

2. The increases of maternity allowance specified in columns 3, 4 and 5 of this Part of this Schedule apply only in so far as provided for by regulations under section 8 of the National Insurance Act 1953.

Section 4.

SCHEDULE 3

AMENDMENTS OF INDUSTRIAL INJURIES ACT

PART I

TABLE TO BE SUBSTITUTED IN PART I OF SCHEDULE 2

Weekly Rates of Contributions payable by Insured Persons and Employers

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person	By the employer
Men over the age of 18 ...	d. 8	d. 9
Women over the age of 18 ...	5	6
Boys under the age of 18 ...	4	5
Girls under the age of 18 ...	3	3

PART II

AMENDMENTS OF BENEFIT PROVISIONS

(The references to the various provisions are references to those provisions as amended by Schedule 1 of the National Insurance Act 1960 and any other enactment specifically mentioned in column 1 of this Schedule)

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 11 (3) ...	Weekly rates of injury benefit— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries between 17 and 18 without dependants, (c) for beneficiaries under 17 without dependants.	97 shillings and 6 pence. 73 shillings and 2 pence. 48 shillings and 9 pence.	115 shillings. 86 shillings and 3 pence. 57 shillings and 6 pence.
Section 12 (6) ...	Maximum amount of disablement gratuity for disablement of less than twenty per cent.	Three hundred and twenty pounds.	Three hundred and eighty pounds.

SCH. 3

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Third Schedule (applied by s. 12 (7)).	Weekly rates of disablement pension for degrees of disablement of—		
	100 per cent. ...	97 shillings and 6 pence.	115 shillings.
	90 per cent. ...	87 shillings and 9 pence.	103 shillings and 6 pence.
	80 per cent. ...	78 shillings.	92 shillings.
	70 per cent. ...	68 shillings and 3 pence.	80 shillings and 6 pence.
	60 per cent. ...	58 shillings and 6 pence.	69 shillings.
	50 per cent. ...	48 shillings and 9 pence.	57 shillings and 6 pence.
	40 per cent. ...	39 shillings.	46 shillings.
	30 per cent. ...	29 shillings and 3 pence.	34 shillings and 6 pence.
	20 per cent. ...	19 shillings and 6 pence.	23 shillings.
Section 13 (1) ...	Amounts by which weekly rates of disablement pension are increased on account of unemployability— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries under 18 without dependants.	57 shillings and 6 pence. 32 shillings and 6 pence.	67 shillings and 6 pence. 38 shillings and 6 pence.
Section 14 (1) (as amended by s. 1 of National Insurance (Industrial Injuries) Act 1948).	Maximum amount of increase of weekly rate of disablement pension in cases of special hardship.	39 shillings.	46 shillings.
Section 15 (2) ...	Maximum amount of increase of weekly rate of disablement pension where constant attendance is needed— (a) in cases other than those of exceptionally severe disablement, (b) in cases of exceptionally severe disablement.	40 shillings. 80 shillings.	50 shillings. 100 shillings.

SCH. 3

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 17 (1) (as amended by s. 3 of National Insurance Act 1951).	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	17 shillings and 6 pence. 9 shillings and 6 pence.	20 shillings. 12 shillings.
Section 18 (1) ...	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of adult dependant.	35 shillings.	41 shillings and 6 pence.
Section 19 (3) ...	Weekly rate of widow's pension payable in circumstances specified in the subsection.	64 shillings.	75 shillings.
Section 19 (4) ...	Maximum higher weekly rate of widow's pension payable for prescribed period after deceased's death.	80 shillings.	95 shillings.
Section 20 (2) ...	Weekly rate of widow's pension.	64 shillings.	75 shillings.
Section 21 (1) (as amended by s. 3 of National Insurance Act 1951 and Schedule to Family Allowances and National Insurance Act 1956).	Weekly rate of death benefit— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest. Amount of increase of aforesaid weekly rate payable to a widow in circumstances specified in the subsection.	17 shillings and 6 pence. 9 shillings and 6 pence. 7 shillings and 6 pence.	20 shillings. 12 shillings. 10 shillings.

PART III

SCH. 3

CONSEQUENTIAL AMENDMENTS

Provision of Industrial Injuries Act	Description of provision	Existing amount	New amount
Section 14 (3) (as set out in the Schedule to the National Insurance (Industrial Injuries) Act 1948 and amended by Schedule 1 Part III of the National Insurance Act 1960).	Limit on disablement pension increased in respect of special hardship.	97 shillings and 6 pence.	115 shillings.
Section 21 (1) (as amended by paragraph 10 of the Schedule of the Family Allowances and National Insurance Act 1956 and the said Schedule 1 Part III).	Restriction on special increase of death benefit by reference to amount contributed by a widow to the cost of providing for a child belonging to the family of the deceased.	25 shillings.	30 shillings.
Section 29 (1) (a) (as amended by the National Insurance (Industrial Injuries) Act 1948 and the said Schedule 1 Part III).	Limits on aggregate of weekly benefit payable for successive accidents.		
Sub-paragraph (i) and sub-paragraph (ii)		97 shillings and 6 pence.	115 shillings.
Sub-paragraph (ii).		73 shillings and 2 pence.	86 shillings and 3 pence.
Sub-paragraph (iii).		48 shillings and 9 pence.	57 shillings and 6 pence.

Section 8.

SCHEDULE 4

COMMENCEMENT, TRANSITIONAL PROVISIONS AND
CONSTRUCTION*General provisions for appointed days*

1.—(1) Subject to paragraph 2 of this Schedule, the following provisions of this Act, that is to say—

sections 1 and 2,
section 3 (1),
section 4,
section 5,
Schedules 1 to 3, and
Schedule 5

shall not come into force until such date as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purposes in relation to different cases or classes of case.

(2) Any such order may—

(a) if the date thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplemental provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only, and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act;

(b) be varied or revoked by a subsequent order under this subparagraph.

(3) Any statutory instrument containing an order under this paragraph shall be laid before Parliament after being made.

*Coming into operation under section 7 (3)
of National Insurance Act 1959*

2.—(1) For the purposes of section 7 (3) of the National Insurance Act 1959 sections 1 (1) and 3 (1), and Schedule 1, of this Act shall come into force so as to apply in relation to service after the date appointed under section 3 (2) of this Act (and not in relation to earlier service) and, for other purposes, the date appointed under the foregoing paragraph for the coming into force of the said sections 1 (1) and 3 (1) shall be not later than that date.

(2) For the purposes of the said section 7 (3) nothing in any regulations under the National Insurance Act 1946 which state that they are made in consequence of this Act shall affect the rate of contributions which would be payable before the said date appointed under section 3 (2) of this Act.

*Effect of awards made before, or in respect of the period
beginning before, appointed or prescribed day*

3.—(1) Where an award of any benefit under the Industrial Injuries Act or the National Insurance Act 1946 has been made, whether before or after the passing of this Act, before the day appointed or prescribed

for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence thereof, then, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before that day) at the higher weekly rate, and the award shall have effect accordingly.

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(2) Where any such award—

(a) is made after a day has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate or within a higher maximum weekly rate by virtue of this Act or any regulations made in consequence thereof; and

(b) is made before that day,

the award may provide for the benefit to be paid, as from that day, at the higher weekly rate, or as the case may be, at any weekly rate within the higher maximum rate.

Variation of disablement gratuities

4. Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under section 12 (6) of the Industrial Injuries Act may provide that the scale as varied shall apply only in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Maternity grant

5. The provisions of this Act increasing maternity grants shall not affect—

(a) the amount of such a grant where the confinement occurred before the day appointed in relation to those provisions under this Schedule, or

(b) the amount of any such grant to which a woman has become entitled before the said day by virtue of regulations made under section 14 (4) of the National Insurance Act 1946 as set out in Schedule 1 of the National Insurance Act 1953:

Provided that regulations made by the Minister may provide for increasing to the amount provided for by this Act the amount of a maternity grant to which a woman has become entitled before the said day (whether payment has already been made or not) if the confinement in question has not occurred before that day and her pregnancy has not been otherwise terminated before that day.

Allowances in respect of incapacities arising from pre-1948 employment

6.—(1) Where an allowance under the Workmen's Compensation and Benefit (Supplementation) Act 1956, or under the Industrial Diseases (Benefit) Acts 1951 and 1954, is or has been awarded before

SCH. 4 the increase date, the allowance shall, without any claim being made, become payable (except as respects any period falling before the increase date) at the higher weekly rate provided for by section 5 of this Act, and the award shall have effect accordingly.

(2) Where any such award is made before the increase date, but after that date has been appointed, the award may provide for the allowance to be paid as from that date at the higher weekly rate.

(3) In the foregoing provisions of this paragraph "the increase date" means the date appointed for the higher weekly rate to become effective under subsection (1) or subsection (3), as the case may be, of section 5 of this Act.

(4) Section 1 (4) of the Workmen's Compensation (Supplementation) Act 1951, so far as it prohibits the making of a scheme under that Act unless a draft of the scheme has been laid before Parliament and approved by a resolution of each House, shall not apply to any such scheme made before the expiration of the period of six months beginning with the date of the passing of this Act if the statutory instrument containing the scheme states that the scheme is made in consequence of this Act; but any statutory instrument containing a scheme which, by virtue of the foregoing provision, is not required to be laid and approved in draft as aforesaid before being made shall be subject to annulment in pursuance of a resolution of either House of Parliament.

General transitional provision as to regulations

7. Section 61 (2) of the Industrial Injuries Act (which requires any proposal to make regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) and section 77 of the National Insurance Act 1946 (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft is laid before Parliament) shall not apply to any regulations made, or to any draft of regulations laid before Parliament, before the expiration of the period of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

Construction

8. This Act—

- (a) in so far as it relates to the subject matter of the National Insurance (Industrial Injuries) Acts 1946 to 1961 shall be construed as one with the Industrial Injuries Act, and
- (b) in so far as it relates to the subject matter of the National Insurance Acts 1946 to 1961 shall be construed as one with the National Insurance Act 1946.

*References to National Insurance Acts in National Health
Service Contributions Act 1957*

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9. It is hereby declared that any reference in the National Health Service Contributions Act 1957 to the National Insurance Acts (which, by virtue of section 1 (1) of that Act, Schedule 2 paragraph 1 of the National Health Service Contributions Act 1961 and Schedule 3 paragraph 13 (3) of the Family Allowances and National Insurance Act 1961, is a reference to the enactments which may be cited as the National Insurance Acts 1946 to 1956, together with certain later enactments) is a reference to those enactments as amended by this Act.

SCHEDULE 5

Section 8.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act 1946.	In section 19 (3) proviso the words from "and regulations" to the end of the subsection.
9 & 10 Geo. 6. c. 67.	The National Insurance Act 1946.	In section 17, in subsection (1) (b) (i), the words from "so however" to the words "elder or eldest" at the end of the said paragraph (i), and in subsection (3) the proviso.
4 & 5 Eliz. 2. c. 50.	The Family Allowances and National Insurance Act 1956.	In the Schedule, in section 17 (1) (b) (i) of the National Insurance Act 1946 as set out in paragraph 1 the words from "so however" to "elder or eldest" at the end of the said paragraph (i), paragraph 3 and paragraph 9 (b).
7 & 8 Eliz. 2. c. 47.	The National Insurance Act 1959.	Section 1 (3) (c).
9 & 10 Eliz. 2. c. 5.	The National Insurance Act 1960.	Section 1 (1) (2). Section 2 (1) (2) (5) and in section 2 (3) the words "maternity grant and", "twelve pounds ten shillings and", "fourteen pounds and" and, in both places, "respectively". Section 4. Section 6 (3). In Schedule 1, Parts I and II and in Part III paragraphs 1 to 3. Schedules 2 and 3. In Schedule 4, paragraph 2. Schedule 5, but not so as to affect regulations which have been made under that Schedule.
10 & 11 Eliz. 2. c. 6.	The Family Allowances and National Insurance Act 1961.	Section 1 (1) (3). Section 7 (1) (4). In Schedule 3, paragraph 1 and paragraph 2.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act 1946	9 & 10 Geo. 6. c. 67.
National Assistance Act 1948	11 & 12 Geo. 6. c. 29.
Workmen's Compensation (Supplementation) Act 1951.	14 & 15 Geo. 6. c. 22.
Pneumoconiosis and Byssinosis Benefit Act 1951	15 & 16 Geo. 6 & 1 Eliz. 2. c. 4.
National Insurance Act 1953	1 & 2 Eliz. 2. c. 29.
Workmen's Compensation and Benefit (Supplementation) Act 1956.	4 & 5 Eliz. 2. c. 51.
National Health Service Contributions Act 1957	5 & 6 Eliz. 2. c. 34.
National Insurance (No. 2) Act 1957	6 & 7 Eliz. 2. c. 1.
National Insurance Act 1959	7 & 8 Eliz. 2. c. 47.
National Insurance Act 1960	9 & 10 Eliz. 2. c. 5.
National Health Service Contributions Act 1961	9 & 10 Eliz. 2. c. 13.
Post Office Act 1961	9 & 10 Eliz. 2. c. 15.
Family Allowances and National Insurance Act 1961.	10 & 11 Eliz. 2. c. 6.

1963 CHAPTER 8

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on 31st March 1962, 1963 and 1964. [28th March 1963]

Most Gracious Sovereign,

WE, YOUR MAJESTY'S most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Issue of
£115,301,030
out of the
Consolidated Fund
for the service of
the years ending
31st March 1962
and 1963.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to Her Majesty for the service of the years ending on 31st March 1962 and 1963, the sum of £115,301,030.